

Arkansas Act 721 of 2025 General Guidance

Act 721 of 2025 ([link](#)) requires public school districts, open-enrollment public charter schools, and public institutions of higher education (collectively, “LEAs and IHEs”) to address discrimination and harassment and establishes related requirements for schools and oversight by the Arkansas Department of Education (ADE). This guidance outlines:

- I. **LEA and IHE Reporting Process to ADE**
- II. **Complaints Submitted to ADE for Investigation**
- III. **LEA and IHE Policy Considerations**

For assistance, contact the ADE Division of Elementary and Secondary Education (DESE) Compliance Assistance Center (CAC) at (501) 682-4213 or ade.cac@ade.arkansas.gov.

I. LEA and IHE Reporting Process to ADE

Arkansas public school districts, charter schools, colleges, and universities must report to ADE the incidents or complaints of Title VI discrimination or harassment that are received, observed, or addressed at the local or institutional level. This includes, without limitation, discrimination and harassment, motivated by antisemitism. This information should be submitted via the digital *AR Act 721: Data Collection Form* ([link](#)) by an authorized representative of the LEA and IHE.

Report Submission

1. Click here ([link](#)) for responses to the frequently asked questions below.
 - a. What is the expected timeframe for reporting to ADE?
 - b. How does Act 721 of 2025 distinguish between an “incident” and a “complaint”?
 - c. How does Act 721 of 2025 distinguish between “discrimination” and “harassment” or define “race,” “color,” and “national origin”?
 - d. Do LEAs and IHEs report to ADE only discrimination and harassment that is motivated by antisemitism?
 - e. How can I complete the *Act 721 Data Collection Form* if I do not have a Gmail account?
2. Provide the institutional email address, not a personal email, confirming submission from an authorized individual.
3. Do not include Social Security numbers or other highly sensitive personal information in the submission. Protect confidentiality to the extent permitted by law.

*Do not use the data collection form to file a complaint of discrimination or harassment to ADE for investigation. To submit a complaint for investigation, visit the CAC website ([link](#)).

After the Report Submission

After the data collection form is submitted, the CAC is automatically notified, and a unique Case ID number is assigned to the provided information. The submitter’s listed email address will receive the Case ID and instructions for updating the submission.

To update information regarding the status of the incident or complaint and/or the resolution, use the same *AR Act 721: Data Collection Form* ([link](#)) and select “Follow-up Submission” under Submission Type. Provide the assigned Case ID to link updates to the original submission.

II. Complaints Submitted to ADE for Investigation

Act 721 of 2025 designates an ADE Title VI Coordinator to establish, maintain, and publicize a formal process for submitting Title VI complaints of discrimination or harassment for investigation. Such complaints should be submitted via the digital Complaint Form ([link](#)).

Complaint Submission and Related Processes

1. Click here ([link](#)) for responses to the frequently asked questions below.
 - a. Who may submit a complaint to ADE under Act 721 of 2025?
 - b. What occurs after the ADE Title VI Coordinator receives a complaint?
2. Act 721 of 2025 does not replace local and institutional grievance, disciplinary, or due process procedures. Submitting a report or complaint to ADE does not relieve LEAs or IHEs of obligation to address a matter. Filing a complaint with ADE does not transfer case ownership away from the institution or supplant local authority. LEAs and IHEs remain responsible for:
 - a. Implementing and following its adopted nondiscrimination and grievance policies
 - b. Applying Title VI standards when evaluating conduct
 - c. Taking prompt and appropriate corrective action when warranted
 - d. Maintaining documentation sufficient to demonstrate compliance
3. A complaint submitted under Act 721 of 2025 is distinct from a CAC Request for Support ([link](#)) to aid a school district or charter school.

III. LEA and IHE Policy Considerations

Act 721 of 2025 requires educational institutions to address discrimination or harassment motivated by antisemitism in the same manner as other forms of prohibited discrimination. It defines "antisemitism" using the working definition of the International Holocaust Remembrance Alliance (IHRA), including its contemporary examples. The Act requires school districts and charter schools to adopt policies, and institutions of higher education to incorporate into student and employee codes of conduct, the IHRA definition of antisemitism and prohibitions against antisemitic conduct. Act 721 of 2025 also affirms the use of reasonable time, place, and manner restrictions on speech to maintain an orderly educational environment and protect the rights of all students, consistent with constitutional safeguards.

Compliance

1. Click here ([link](#)) for responses to the frequently asked questions below.
 - a. How does Act 721 of 2025 affect compliance with Arkansas Code § 6-18-514 Anti-Bullying?
 - b. How does Act 721 of 2025 affect First Amendment protections and academic freedom?
2. Update policies and communicate revised expectations and definitions.
3. Ensure educational programs do not result in Title VI discrimination or harassment.
4. Communicate procedures for reporting discrimination and harassment at the local level.
5. Maintain documentation related to incident and complaint intake, actions taken, and communications associated with ADE reporting.
6. Ensure designated staff (e.g., Title VI Coordinator, administrators) understand their role, including expectations to coordinate compliance with Title VI and Act 721 of 2025 and report incidents and complaints to ADE.